IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an Appeal in terms of Section 15 of the Judicature Act No 02 of 1978 and Section 331 of the Code of Criminal Procedure Act No.15 of 1979.

CA Case No: CA-HCC-317/16

HC of Colombo 8331/16

Hon. Attorney General,
Attorney General's Department,
Colombo

Complainant – Appellant

Vs.

1. Hettiarachchi Mudiyansekage Prasad Chandana Kumara alias Sampath
   No. 54/1C, Bogahawaththa
   Wellampitiya

2. Daliwala Gedara Gamini Senevirathna
   Makelwela, Adikarige Waththa,
   Mawanella

3. Kankanamlage Pradeep Chaminda alias Vajira
   No. 543/A, Wendala,
   Ruwanwella

4. Sivakanthan Vivekanandan alias Charan
   (Tried in Absentia)

5. Fabian Royston Tussaint
   (Tried in Absentia)

Accused-Respondents

Before: **B. Sasi Mahendran, J.**
Amal Ranaraja, J

Counsel : Suharshi Herath, DSG for the Accused- Appellant
Anuja Premaratna, PC with Nayana Dissanayake and Emal Gunasekara, for the 2nd and 3rd Accused- Respondents
Sahan Kulatunga with Thilini Samarasekara for the 1st Respondent

Written Submissions: 09.06.2023 and 23.01.2026(by the 2nd and 3rd Accused-Appellant)
On 30.01.2026 (by the Respondent)

Argued On : 21.01.2026

Judgment On: 26.03.2026

JUDGEMENT

B. Sasi Mahendran, J.

The Accused-Respondents (hereinafter referred to as Respondents) were indicted before the High Court of Colombo, along with the 1st Accused, Palanasami Suresh alias Sami (who is dead), and were charged under the following counts,

1. Conspiring to assassinate a specified person, i.e., Member of Parliament Nadarajah Raviraj punishable under section 3 (b) read with section 2(1) (a) of the Prevention of Terrorism Act.
2. Causing the death of a specified person, i.e., Member of Parliament Nadarajah Raviraj, which is an offence punishable under section 2(2) (1) read with section 2(1) (a) of the Prevention of Terrorism Act.
3. Causing the death of a specified person, i.e., Police constable 30636 Lokuwellamurage Lakshman, which is an offence punishable under section 2(2)(1) read with section 2(1)(a) of the Prevention of Terrorism Act.
4. Causing the death of Nadarajah Raviraj is punishable under section 296, read with section 32 of the Penal Code.
5. Causing the death of Lokuwellamurage Lakshman is punishable under section 296 read with section 32 of the Penal Code.

The trial commenced when the Fourth and Fifth Respondents, namely Sivakanthan Vivekanandan alias Charan and Fabian Royston Tussaint, were tried in absentia in accordance with the provisions of Section 241 of the Criminal Procedure Code.

The Respondents opted for a trial by jury, and the Learned High Court Judge accordingly made an order to that effect on 27.10.2016, and the application was duly allowed by the Court. The trial before the special jury commenced on 22.11.2016 and continued until 24.12.2016.

At the trial, the prosecution presented evidence through 25 witnesses and marking productions P1-P6 and thereafter closed its case. In their defence, the 2nd Respondent, 3rd Respondent, and 4th Respondent opted to make dock statements. The Defense also led the evidence of one witness, Nilantha Layawardana.

Upon conclusion of the trial, the Respondents were found not guilty of all charges on a unanimous verdict of the jury. Thereupon, the Learned High Court Judge acquitted all the Respondents of all the charges against them.

Being aggrieved by the said conviction and the sentence, the Appellant, Honorable Attorney General, has preferred an appeal before this Court, contending that the Learned High Court Judge misdirected the jury, or that the directions given were inadequate.

The facts and circumstances of this case are as follows,

The case for the prosecution rests mainly on the evidence of PW1, suspended Police Constable Preethi Viraja. It should be noted that he was granted a conditional pardon under Section 256 (1) of the Criminal Procedure Code.

According to the witness, while serving in the Kalutara Police College, Eastern Region, under the Deputy Inspector General of Police, he was engaged in operations against the LTTE. During that period, he identified the first accused and maintained a friendship with him thereafter. Subsequently, upon being transferred to the Presidential Security Division under a Superior Police Superintendent, he established good relations with the 4th Respondent and the 5th Respondent. On 09th November, since he is skilled as a motorcyclist, the first accused instructed him to come near the Gangaramaya Temple. At that location, the witness stated that the 1st Respondent, 2nd Respondent, and 3rd Respondent were present. Where the witness observed that the 2nd Respondent was carrying a black bag. The 1st Accused then informed the witness that they intended to capture an LTTE leader and asked whether he was willing to participate where the witness expressed his consent. Following this, the 1st Accused provided him with a motorcycle and instructed him to come to the Borella Cemetery at 6:00 a.m. the next morning.

Upon their advice, on November 10, the witness proceeded near Kitulwatta Road and contacted the 1st Accused, who arrived in a three-wheeler. Inside the vehicle were three to four individuals, including the 4th Respondent, the 5th Respondent, and another person named Nishantha. Later, another three-wheeler, green and cream in color, arrived carrying the 1st and 3rd Respondents. The 1st Respondent then advised the witness that the LTTE leader was expected to come from Matha Road, and following this, the witness was instructed to accompany the shooter to the intelligence unit near Gangaramaya Temple.

Then, the witness proceeded to Matha Road, where a motorcycle had been parked on the left side approximately 40–50 meters away. While the witness was positioned on Matha Road, he heard a gunshot from behind. Turning around, he saw a red jeep coming from Matha Road towards Baseline Road. The 2nd Respondent then fired at the jeep for a short period of time, approximately two minutes. According to the witness, a burst of gunfire was discharged from the black bag, after which the 2nd Respondent got into the witness's motorbike. Although the witness did not see the weapon directly, based on the sound, he

identified it as a T-56 firearm. The 2nd Respondent then said, "Let's go," and they proceeded to the office near Gangaramaya.

The witness stated that he handed over the motorcycle to the 2nd Respondent and noted that the shooting began at around 8:00 a.m. Afterwards, he went to Temple Trees, where he learned that Member of Parliament Nadarajah Raviraja had been shot in Narahenpita. On the following morning, at approximately 10:30 a.m., the witness went to the Intelligence Unit, where the 1st, 2nd, and 3rd Respondents were present. When he inquired about the incident, they told him that it was part of their superior duties and instructed him to mind his own business and not to tell anyone. The witness further stated that he saw the motorcycle being cut into pieces.

Upon conclusion of the trial, the learned High Court Judge, in his charge to the jury, invited them to consider the evidence of PW1, who is an accomplice.

The principal grievance advanced by learned counsel for the State was that the trial Judge, in his charge to the jury, failed to emphasize the importance of the evidence of PW-1 and to instruct the jury on the proper manner in which the testimony of an accomplice should be considered. It is pertinent to refer to that portion of the charge to the jury, which was specifically invited for consideration.

Page 1278 of the brief,

> "ඔහුට කොන්දේසි සහිත සමාවක් දීමෙන් පසුව ඔහු පැමිණිල්ලේ පළවෙනි සාක්ෂිකරු වශයෙන් නම් කර එම සාක්ෂිය මත පැමිණිල්ල නඩුව ඉදිරියට ගෙනයලා තිබෙනවා. දැන් අප සහායකයෙකුගේ සාක්ෂියෙන් වලංගුතාවය අප පරීක්ෂා කලයුතුය. ඔහු ස්වාධීන සාක්ෂිකරුවෙක්ද? ඒක ඔබ තීරණය කරන්න ඕන. ඔබලා තමයි සිද්ධිය සම්බන්ධයෙන් සිද්ධිමය කරුණු සම්බන්ධයෙන් අවසාන විනිශ්චය ගන්නේ. මෙම සාක්ෂිකරුගේ සාක්ෂිය ඔබට පිළිගත හැකිද? ඒක ඔහු සාක්ෂි දුන්න විලාශය හරස් ප්‍රශ්ණ වලට මුහුන දුන්න ආකාරය ඔහුගේ සාක්ෂියේදී ලකුණු කර ඇති පරස්පර විරෝධතා ඒවා සැලකිල්ලට ගෙන සිබ සියලු දෙනා තීරණය කල යුතුයි ඔහුගේ විශ්වාෂනීයභාවය සම්බන්ධයෙන්. සාක්ෂි ආඥා පනතේ 133 වන වගන්තිය යටතේ අපසහයකයෙක් සම්බන්ධයෙන් මෙහෙම කියලා තිබෙනවා. අපරාධ සහායකයෙකු චෝදනා ලැබ සිටින තැනැත්තෙකුට විරුද්ධව සාක්ෂි දීමට සුදුසු සාක්ෂිකරුවෙකු විය යුතුයි. යමෙකු වරදකරු බැව් ඔප්පු වීම අපරාධ සහායයෙකුගේ තහවුරු නොකල සාක්ෂියෙන් පැන නැගී ඇති පමනින් නීති විරෝධී නොවේ. ඒ සාක්ෂි ආඥා පනතේ 133 වන වගන්තිය. චෝදනාවක් ලබා සිටින තැනැත්තෙකු සම්බන්ධයෙන් අප සහායකයෙකු සාක්ෂි දීමෙන් එය එකී සාක්ෂිය වෙනත් සාක්ෂි වලින් වුනොත් වෙනත් සාක්ෂි වලින් තහවුරු නොකර එම සාක්ෂි මත ක්‍රියා කිරීම නිති විරෝධී නොවන බව 133 වන වගන්තියේ දක්වලා තිබෙනවා."

Page 1279 of the brief,

> "114 වගන්තියේ ආ නිදර්ශනය ප්‍රකාරව සැලකිය යුතු කරුණු වලදී ඔහුගේ සාක්ෂි තහවුරු කරනු ලැබුවහොත් මිස නොඑසේ නම් අපරාධ සහායකයෙකුගේ සාක්ෂි විශ්වාෂ කිරීම සුදුසු නොවන බව ඒ අනුව පැ.සා.1 ගේ සාක්ෂිය සැලකිය යුතු කරුණු වලදී තහවුරු කරනු ලැබුවහොත් මිස නොඑසේ නම් අපරාධ සහායයෙකුගේ සාක්ෂි විශ්වාෂ කිරීමට සුදුසු නොවන බව ඔබ සැලකිල්ලට ගත යුතුයි. එයත් සිද්දීමය සම්බන්දයෙන් කරුණක් ඔබ එම කරුණ විශ්ලේෂනය කර ඒ සම්බන්ධයෙන් තිරණයක් ගත යුතුයි. තව ප්‍රශ්නයක් මතු වුනා නඩුවක් ඔප්පු කරන්න සිද්ධියක් ඔප්පු කරන්න සාක්ෂිකරුවන් කී දෙනෙක් අවශ්‍යද? සාක්ෂිකරුවන් මෙපමනක් අවශ්‍ය කියා නීතියේ කොයි වේලාවකවත් නියම කරලා නැහැ. එක් සාක්ෂිකරුවෙක් වුනත් ඔහුගේ සාක්ෂිය අධිකරණයකට පිලි ගන්න පුලුවන් නම් එම සාක්ෂිකරු වුවද ප්‍රමාණවත්. පැමිණිල්ලට බල කිරීමක් නැහැ නැත්නම් පැමිණිල්ලට භාරයට නැහැ අධි චෝදනා පත්‍රයේ නම් කරන ලද සියලුම සාක්ෂිකරුවන් සාක්ෂියට ඉදිරිපත් කිරීමට. ඒක පැමිණිල්ල මෙහෙයවන නීතිඥවරයා අතේ ඒක තිබෙන්නේ. තවත් ප්‍රශ්ණයක් තිබෙනවා විශ්වාෂනීය භාවයේ කොටස් කියන එක. විශේෂයෙන් පලවෙනි සාක්ෂිකරු සමහර කොටස් සත්‍ය බවට ඔබ පිළිගන්න පුලුවන්."

It should be noted that a competent witness against an accused person, and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice (vide Section 133 of the Evidence Ordinance). In the instant case, there is a witness who saw the incident, although he was unable to identify the Respondents. Section 114(b) provides that the Court may presume that an accomplice is unworthy of credit unless the accomplice is corroborated in material particulars.

This concept was discussed in **The Law of Evidence, Volume II (Book 2)**, E.R.S.R. Coomaraswamy, at page 650;

> ***The main rule***
>
> *" A conviction is not illegal merely because it proceeds upon the uncorroborated*
>
> *testimony of an accomplice. But the court may presume that an accomplice is unworthy of credit, unless he is corroborated in material particular. To give an illustrative case, M was charged with murder by pouring arsenic into toddy, which he afterwards gave the deceased to drink.*
>
> *The case for the Crown rested almost entirely on the evidence of P, who testified that he was present and watched M pouring arsenic into the bottle that contained the toddy. The defence was that it was P who administered the poison. The*

evidence of P was found to be full of infirmities. The judge asked the jury to consider whether P was an accomplice; ***but his summing-up did not contain any detailed examination of his evidence with particular reference to the infirmities in it****. Apart from the evidence of P, the evidence against M was of a purely circumstantial nature amounting merely to suspicion.*
The conviction was quashed." (emphasis added)

In ***W.M.M. Kumarihami, Chief Registrar v. Galagamage Indrawansa Kumarasiri and others,*** SC.TAB appeal No. 02/2012, Decided on 02.04.2014, Shiranee Thilakawardhane J held that:

> *"The definition of an accomplice in Sri Lankan law, as accepted by the Courts, clearly indicates that an accomplice must demonstrate common intent and knowingly unite with the principal offender to commit the crime but excludes the mere presence of witnesses in the vicinity of the scene from coming within this definition.*
>
> *However, for the purpose of answering this question of law fully, let us assume that the Witnesses come within the definition of an „Accomplice". The question posed to us is whether evidence proceeding from an accomplice must be corroborated and verified by an independent source.*
>
> *In this regard, reference is made to Section 133 of the Evidence Ordinance which states that —*
>
> > *"An accomplice shall be a competent witness against an accused person, and a conviction is not illegal merely because it proceeds upon the uncorroborated testimony of an accomplice."*

While Section 133 makes it clear that the uncorroborated evidence of an accomplice is acceptable, this section must be read in conjunction with Section 114(b) of the Evidence Ordinance, which states as follows:

> *"An accomplice is unworthy of credit, unless he is corroborated in material particulars".*

These statutory provisions, read together, create a conundrum of sorts, leading to the conclusion that the creditworthiness of an accomplice is dependent upon whether his evidence, in material particulars, is corroborated by another source, whereas a conviction based solely on the uncorroborated evidence of an accomplice is not illegal. Yet, such a conviction would undoubtedly be a dangerous and unsafe one. Thus, it is within the purview of the Courts to consider the creditworthiness of each accomplice, apply their mind and search for cogent and conclusive factors that satisfy them that the accomplice is, in fact, reliable, if they are to convict solely on his evidence.

This sentiment was encapsulated succinctly in the ***Queen v. Liyanage and Others*** (1962) (67 NLR 193), which stated the following with regard to corroborative evidence:

> *"In the case of fellow conspirators or accomplices the established practice, virtually equivalent to a rule of law, requires independent corroboration of their evidence, in material particulars. What is required is some additional evidence, direct or circumstantial, rendering it probable that the accomplice's story is true and reasonably safe to act upon, and connecting or tending to connect the particular defendant with the offence. The degree of suspicion attaching to an accomplice's evidence varies according to the extent and nature of his complicity."*

In the case of ***Sudu Aiya And Others Vs The Attorney- General 2005*** 1 SLR, Page No – 358 At Page 371: Hector Yapa,J. held that:

> *"If one were to accept Ratnayake's evidence as trustworthy, then his evidence alone would be sufficient to establish the guilt of the 1st, 2nd and 3rd accused in respect of the four counts in the indictment. However, in evaluating Ratnayake's evidence, he being an accomplice and one who has been granted a pardon, it would be necessary to examine his evidence in the light of the nature and extent of corroborative evidence available in the case. In the leading case of R vs Baskervill reference was made with regard to the nature of corroboration required in relation to the evidence of an accomplice. The relevant passage reads as follows" The corroboration required must be independent testimony which affects the accused by connecting or tending to connect him with the crime. In other words, it must be evidence which implicates him, i.e., which confirms in some material particulars not only the evidence that the crime has been committed, but also that*

the prisoner committed it. The corroboration need not be direct evidence that he committed the crime ; it is sufficient if it is merely circumstantial evidence of his connection with it. Nor is it necessary that the accomplice should be confirmed in every detail of his evidence ; if it were, his evidence would be merely confirmatory of the independent testimony and would not be essential to the case." This position was accepted and followed in the Case of Queen vs Liyanage. The important consideration when looking for corroboration is that, the complete story need not be corroborated, but what the law requires is corroboration in some material particulars so that a court could act on that evidence as being reliable. In other words what is necessary is some additional evidence direct or circumstantial, rendering it probable that the accomplice's story is true and reasonably safe to act upon, and such evidence has the effect of connecting or tending to connect the particular accused with the crime."

I hold that the learned High Court Judge failed, in his charge to the jury, to direct them to properly consider the evidence of PW-1 and the sequence of events connected thereto. It is also noted that the learned Judge commenced charging the jury at around 8.50 p.m., despite both counsel having moved for an adjournment. There was no necessity to address the jury on that particular day. Nevertheless, the Judge continued his charge until 11.00 p.m. and thereafter directed the jury to retire and deliver their verdict.

The verdict was delivered at 12.50 a.m., which is highly unusual. I hold that the learned High Court Judge did not properly direct the jury with regard to the evidence of PW-1, who was an accomplice.

Upon analyzing the evidence of PW-1, who is an accomplice, it is evident that there is sufficient material to establish the case against the Respondents and the Accused. In these circumstances, I am inclined to agree with the submission of the learned Deputy Solicitor General that there was a non-direction on the part of the learned High Court Judge, in failing to properly guide the jury with regard to the evidentiary value of accomplice testimony.

For the reasons set out above, the acquittal entered in favor of the Respondents is hereby set aside. I accordingly direct the learned High Court Judge to commence a fresh trial.

I order a retrial against the Respondents.

JUDGE OF THE COURT OF APPEAL

Amal Ranaraja J,

I AGREE

JUDGE OF THE COURT OF APPEAL